LIMITED LIABILITY COMPANY AGREEMENT
OF
LAMBERTON MHC PARTNERS, LLC

This **LIMITED LIABILITY COMPANY AGREEMENT** (this "Agreement") is effective as of the 24th day of September, 2019, by and among **LAMBERTON MHC PARTNERS, LLC,** a Delaware limited liability company (the "LLC"), and the persons identified as the Members on **Schedule A** hereto and who are signatories hereto (such persons and their respective permitted successors and assigns, each a "Member" and collectively, the "Members").

R E C I T A L S:

WHEREAS, the LLC was formed on September 24, 2019 by the filing of the Certificate of Formation of the LLC with the Secretary of State of the State of Delaware; and

WHEREAS, the parties wish to set forth their understanding of the limited liability company and the terms and conditions under which it exists.

ARTICLE 1
DEFINITIONS AND ORGANIZATION AND POWERS

1.01 Definitions. Terms not otherwise defined herein shall have the following meanings:

(a) "Act" has the meaning set forth in Section 1.02 of this Agreement.

(b) "Adjusted Capital Account" means, with respect to any Member, the balance in such Member's Capital Account as of the end of the relevant Fiscal Year after giving effect to the following adjustments: (i) credit to such Capital Account of any amounts that (A) such Member is obligated to contribute to the LLC upon liquidation of such Member's interest in the LLC and (B) such Member is obligated to restore or deemed to be obligated to restore pursuant to Treasury Regulations Section 1.704-1(b)(2)(ii)(c) or the penultimate sentences of Treasury Regulations Sections 1.704-2(g)(l) and 1.704-2(i)(5); and (ii) debit to such Capital Account the items described in Treasury Regulations Sections 1.704-1(b)(2)(ii)(d)(4), (5) and (6). This definition of Adjusted Capital Account is intended to comply with the provisions of Section 1.704-1(b)(2)(ii)(d) of the Treasury Regulations and will be interpreted consistently therewith.

(c) An "Affiliate" of any Person means (i) a Person that directly or indirectly, through one or more intermediaries, controls, is controlled by or is under common control with the first mentioned Person and (ii) a liquidating trust formed by such Person or by a group including such Person. An Affiliate of a collective investment vehicle shall also include (x) any other collective investment vehicle that is managed or advised by the same Person or by an Affiliate of said Person and any members or partners of such investment vehicle and (y) any limited partner, member, stockholder or other equityholder of such collective investment vehicle. A Person shall be deemed to control another Person if such first Person possesses directly or indirectly the power to direct, or cause the direction of, the management and policies of the second Person, whether through the ownership of voting securities, by contract or otherwise.

(d) "Agreement" has the meaning set forth in the preamble to this Agreement.

(e) "Capital Account" has the meaning set forth in Section 7.01(a) of this Agreement.

(f) "Capital Commitment" has the meaning set forth in Section 7.02 of this Agreement.

(g) "Capital Contribution" means, with respect to any Member, the total amount of cash and the initial Gross Asset Value of property (other than cash) contributed to the capital of the LLC made by or on behalf of a Member, whether as an initial capital contribution or as an additional capital contribution.

(h) "Certificate" has the meaning set forth in Section 1.02 of this Agreement.

(i) "Code" has the meaning set forth in Section 1.05 of this Agreement.

(j) "Confidential Information" has the meaning set forth in Section 2.12 of this Agreement.

(k) "Depreciation" means, for each Fiscal Year, an amount equal to the depreciation, amortization or other cost recovery deduction allowable with respect to an asset for such Fiscal Year, except that if the Gross Asset Value of an asset differs from its adjusted basis for federal income tax purposes at the beginning of such Fiscal Year, Depreciation will be an amount which bears the same ratio to such beginning Gross Asset Value as the federal income tax depreciation, amortization or other cost recovery deduction for such Fiscal Year bears to such beginning adjusted tax basis; *provided, however*, that if the adjusted basis for federal income tax purposes of an asset at the beginning of such Fiscal Year is zero, Depreciation will be determined with reference to such beginning Gross Asset Value using any reasonable method selected by the Managing Member.

(l) "Effective Date" has the meaning set forth in the preamble to this Agreement.

(m) "Fiscal Year" has the meaning set forth in Section 1.05 of this Agreement.

(n) "Gross Asset Value" means, with respect to any asset, the asset's adjusted basis for federal income tax purposes, except as follows:

(i) the initial Gross Asset Value of any asset contributed by a Member to the LLC will be the fair market value of such asset as determined by the Managing Member at the time it is accepted by the LLC, unreduced by any liability secured by such asset, as determined by the Managing Member.

(ii) the Gross Asset Values of all LLC assets will be adjusted to equal their respective fair market values, unreduced by any liabilities secured by such assets, as determined by the Managing Member as of the following times, if the Managing Member reasonably determines that such adjustment is necessary or appropriate to reflect the relative membership interests of the Members in the LLC: (A) the acquisition of additional Units by any new or existing Member in exchange

for more than a de minimis Capital Contribution; (B) the Distribution by the LLC to a Member of more than a de minimis amount of cash or property as consideration for Units; (C) the liquidation of the LLC within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(g); (D) the grant of a membership interest in the LLC (other than a de minimis interest), including without limitation a grant of Units intended to be "profits interests" for U.S. federal income tax purposes, as consideration for the provision of services to or for the benefit of the LLC by an existing Member acting in a member capacity, or by a new Member acting in a Member capacity or in anticipation of becoming a Member of the LLC; (E) the acquisition of an interest in the LLC by any new or existing Member upon the exercise of a noncompensatory option or warrant in accordance with Treasury Regulation Section 1.704-1(b)(2)(iv)(s); and (F) at such other times at the Managing Member shall reasonably determine necessary or advisable in order to comply with Treasury Regulations Sections 1.704-1(b) and 1.704-2.

(iii) the Gross Asset Value of any asset of the LLC distributed to any Member will be adjusted to equal the fair market value of such asset, unreduced by any liability secured by such asset, on the date of distribution as determined by the Managing Member.

(iv) the Gross Asset Value of the LLC assets will be increased (or decreased) to reflect any adjustments to the adjusted basis of such assets pursuant to Sections 734(b) or 743(b) of the Code but only to the extent that such adjustments are taken into account in determining Capital Accounts pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m) and paragraph (f) of the definition of "Net Profit" and "Net Loss". If any noncompensatory options or warrants are outstanding upon the occurrence of an event described in this paragraph (ii)(A) through (ii)(F), the LLC shall adjust the Gross Asset Values of its properties in accordance with Treasury Regulation Sections 1.704-1(b)(2)(iv)(f)(1) and 1.704-1(b)(2)(iv)(h)(2).

(v) if the Gross Asset Value of an asset has been determined or adjusted pursuant to paragraph (i), (ii) or (iv) of this definition, such Gross Asset Value will thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Net Profit and Net Loss.

(o) "Indemnified Party" includes (i) a person serving as an Officer of the LLC or in a similar executive capacity appointed by the Managing Member and exercising rights and duties delegated by the Managing Member, (ii) a person serving at the request of the LLC as a director, manager, officer, employee or other agent of another organization, (iii) any person who formerly served in any of the foregoing capacities, and (iv) the Managing Member and its affiliates.

(p) "Initial Capital Contribution" has the meaning set forth in Section 2.02(c) of this Agreement.

(q) "Liquidation Event" has the meaning set forth in Section 8.02 of this Agreement.

(r) "LLC" has the meaning set forth in the preamble to this Agreement.

(s) "LLC Minimum Gain" has the meaning set forth in Treasury Regulations Sections 1.704-2(b)(2) and 1.704-2(d)(1) for the phrase "partnership minimum gain."

(t) "Managing Member" means A2Z Community Partners LLC, a Maryland limited liability company.

(u) "Member(s)" has the meaning set forth in the preamble to this Agreement.

(v) "Member Minimum Gain" means an amount, with respect to each Member Nonrecourse Debt, equal to the LLC Minimum Gain that would result if such Member Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance Regulations Section 1.704-2(i)(2) with respect to "partner nonrecourse debt minimum gain."

(w) "Member Nonrecourse Debt" has the meaning set for in Treasury Regulations Section 1.704-2(b)(4) for the phrase "partner nonrecourse debt."

(x) "Member Nonrecourse Deductions" has the meaning set forth in Treasury Regulations Section 1.704-2(i) for the phrase "partner nonrecourse deductions."

(y) "Membership Interest" means the limited liability company interests of the LLC, including all economic and management rights and benefits to which such Member may be entitled in accordance with this Agreement and the Act.

(z) "Net Profit" or "Net Loss" means, for any Fiscal Year or other period, an amount equal to the LLC's taxable income or loss for such year or period, determined in accordance with Section 703(a) of the Code (for this purpose, all items of income, gain, loss or deduction required to be stated separately pursuant to Section 703(a)(l) of the Code will be included in taxable income or loss), with the following adjustments:

(i) any income of the LLC that is exempt from federal income tax and not otherwise taken into account in computing Net Profit or Net Loss will be added to such taxable income or loss;

(ii) any expenditures of the LLC described in Section 705(a)(2)(B) of the Code or treated as Code Section 705(a)(2)(B) expenditures pursuant to Section 1.704-1(b)(2)(iv)(i) of the Treasury Regulations and not otherwise taken into account in computing Net Profit or Net Loss will be subtracted from such taxable income or loss;

(iii) in the event the Gross Asset Value of any LLC asset is adjusted pursuant to paragraph (ii) or (iii) of the definition of "Gross Asset Value," the amount of such adjustment will be taken into account as gain or loss from the disposition of such asset for purposes of computing Net Profit or Net Loss;

(iv) gain or loss resulting from any disposition of property with respect to which gain or loss is recognized for federal income tax purposes will be computed by reference to the Gross Asset Value of property disposed of, notwithstanding that the

adjusted tax basis of such property differs from its Gross Asset Value;

(v) in lieu of depreciation, amortization, and other cost recovery deductions taken into account in computing such taxable income or loss, there will be taken into account Depreciation with respect to each asset of the LLC for such Fiscal Year, computed in accordance with the definition of "Depreciation" above;

(vi) to the extent an adjustment to the adjusted tax basis of any LLC asset pursuant to Sections 734(b) of the Code is required pursuant to Treasury Regulations 1.704-1(b)(2)(iv)(m) to be taken into account in determining Capital Accounts as a result of a distribution other than in complete liquidation of a Member's interest in the LLC, the amount of such adjustment will be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis of the asset) from the disposition of the asset and will be taken into account for purposes of computing Net Profit or Net Loss; and

(vii) notwithstanding any other provision of this definition of Net Profit and Net Loss, any items that are specially allocated pursuant to Section 8.05(b) and Section 8.05(c) hereof shall not be taken into account in computing Net Profit or Net Loss. The amounts of the items of LLC income, gain, loss or deduction available to be specially allocated pursuant to Section 8.05(b) and Section 8.05(c) hereof shall be determined by applying rules analogous to those set forth in this definition of Net Profit and Net Loss.

(aa) "Nonrecourse Deductions" has the meaning set forth in Treasury Regulations Sections 1.704-2(b)(1) and 1.704-2(c).

(bb) "Nonrecourse Liability" has the meaning set forth in Treasury Regulations Sections 1.704-2(b)(3) and 1.752-1(a)(2).

(cc) "Officer(s)" has the meaning set forth in Section 4.01 of this Agreement.

(dd) "Partnership Representative" has the meaning set forth in Section 4.06(a) of this Agreement.

(ee) "Permitted Transferee" has the meaning set forth in Section 9.02 of this Agreement.

(ff) "Person" means an individual, a corporation, a partnership, a joint venture, a trust, an unincorporated organization, a limited liability company, a government and any agency or political subdivision thereof.

(gg) "Reviewed Year Member" has the meaning set forth in Section 4.06(b) of this Agreement.

(hh) "Sale Event" means (i) a transaction or series of related transactions in which a Person, or a group of related Persons, acquires from Members Units representing more than fifty percent (50%) of the outstanding voting power of the LLC or a Subsidiary (a "Unit Sale"), (ii) any merger or consolidation of the LLC or a Subsidiary into or with another entity

(except one in which the holders of Units of the LLC immediately prior to such merger or consolidation continue to hold at least a majority of the voting power of the Units or other capital stock of the surviving entity) or (iii) any sale of all or substantially all of the assets of the LLC or all of its Subsidiaries.

(ii) "Securities Act" means the Securities Act of 1933, as amended.

(jj) "Selling Member" has the meaning set forth in Section 9.04(a) of this Agreement.

(kk) "Subsidiary" or "Subsidiaries" means the direct and indirect subsidiaries of the LLC.

(ll) "Tax Distribution" has the meaning set forth in Section 8.01(b) of this Agreement.

(mm) "Tax Liability" has the meaning set forth in Section 8.01(b) of this Agreement.

(nn) "Tax Rate" has the meaning set forth in Section 8.01(b) of this Agreement.

(oo) "Transfer" means any direct or indirect transfer, donation, sale, assignment, pledge, hypothecation, grant of a security interest in or other disposal or attempted disposal of all or any portion of a security, any interest or rights in a security, or any rights under this Agreement. "Transferred" means the accomplishment of a Transfer, and "Transferee" means the recipient of a Transfer.

(pp) "Treasury Regulations" has the meaning set forth in Section 7.01(a) of this Agreement.

(qq) "Units" means, collectively, the units representing the Membership Interests of the LLC.

1.02 Organization. The LLC has been formed by the filing of its Certificate of Formation (as the same may be amended, the "Certificate") with the Delaware Secretary of State on September 24, 2019 pursuant to the Delaware Limited Liability Company Act (6 Del.C § 18-101, et seq.) (as amended from time to time, the "Act"). The registered agent and registered office of the LLC in Delaware shall be Northwest Registered Agent Service, Inc., 8 The Green, Suite B, Dover, Delaware 19901. The Certificate may be restated by the Managing Member, as provided in the Act or amended by an Executive Officer with respect to the address of the registered office of the LLC in Delaware and the name and address of its registered agent in Delaware or to make corrections required by the Act.

1.03 Purposes and Powers. The principal business activity and purpose of the LLC shall be to engage in any lawful activity as directed by the Managing Member. The LLC shall have authority to engage in any other lawful business, purpose or activity permitted by the Act, and it shall possess and may exercise all of the powers and privileges granted by the Act or which may be exercised by any person, together with any powers incidental thereto, so far as such powers or privileges are necessary or convenient to the conduct, promotion or attainment of the business

purposes or activities of the LLC.

1.04 Principal Place of Business. The principal office and place of business of the LLC shall initially be 10221 River Road, Suite 59831, Potomac, Maryland 20859. The Managing Member may change the principal office or place of business of the LLC at any time and may cause the LLC to establish other offices or places of business in various jurisdictions and appoint agents for service of process in such jurisdictions.

1.05 Fiscal Year. The fiscal year of the LLC shall be the calendar year or such other fiscal year as may be designated by the Managing Member (the "Fiscal Year") or required under the Internal Revenue Code of 1986, as amended (the "Code").

1.06 Qualification in Other Jurisdictions. The Managing Member shall cause the LLC to be qualified or registered under applicable laws of any jurisdiction in which the LLC transacts business and shall be authorized to execute, deliver and file any certificates and documents necessary to effect such qualification or registration, including without limitation, the appointment of agents for service of process in such jurisdictions.

ARTICLE 2
MEMBERS

2.01 Members. The initial Members of the LLC and their addresses shall be listed on **Schedule A** and said schedule shall be amended from time to time to reflect the withdrawal of Members and the admission of additional Members pursuant to this Agreement. The Members shall constitute a single class or group of members of the LLC for all purposes of the Act, unless otherwise explicitly provided herein. The Managing Member shall notify the Members of changes in **Schedule A** which shall constitute the record list of the Members for all purposes of this Agreement and, subject to Section 2.12 below, the Managing Member shall provide a copy of **Schedule A** to any Member upon request.

2.02 Units.

(a) In General. The Members shall have no interest in the LLC other than the interest conferred by this Agreement representing, with respect to any Member at any particular time, that Member's Units. Every Member by virtue of having become a Member shall be held to have expressly assented and agreed to the terms hereof and to have become a party hereto. Ownership of a Unit shall not entitle a member to any title in or to the whole or any part of the property of the LLC or right to call for a partition or division of the same or for an accounting.

(b) Designation of Units. The LLC is authorized to have one (1) class of Units. The LLC is authorized to issue up One Thousand (1,000) Units. The Managing Member has the exclusive authority to issue Units and to authorize additional Units for issuance pursuant to the terms of this Agreement.

(c) Initial Capital Contribution. Each Member has made the initial Capital Contribution (each, an "Initial Capital Contribution") and been issued the number of Units set forth opposite his, her or its name on **Schedule A** attached hereto.

(d) No Reduction in Member's Units. Except as otherwise provided in this Agreement, the number of Units held by a Member shall not be reduced without such Member's consent.

2.03 Action by Members. No annual meeting of Members is required to be held. Any action required or permitted to be taken at any meeting of Members may be taken without a meeting if one or more written consents to such action shall be signed by the Members holding the amount of Units required to approve the action being taken. Such written consents shall be delivered to the Managing Member at the principal office of the LLC and, unless otherwise specified, shall be effective on the date when the first consent is so delivered.

2.04 Voting Rights. Unless otherwise required by the Act or specified elsewhere in this Agreement, all actions, approvals and consents to be taken or given by the Members under the Act, this Agreement or otherwise shall require the affirmative vote or the written consent of the Managing Member. Except as specifically provided in this Agreement, each Unit shall be entitled to one (1) vote per Unit on all matters with respect to which all Members are entitled to vote.

2.05 Limitation of Liability of Members. Except as otherwise provided in the Act, no Member of the LLC shall be obligated personally for any debt, obligation or liability of the LLC or of any other Member, whether arising in contract, tort or otherwise, solely by reason of being a Member of the LLC. Except as otherwise provided in the Act, by law or expressly in this Agreement, no Member shall have any fiduciary or other duty to another Member with respect to the business and affairs of the LLC, and no Member shall be liable to the LLC or any other Member for acting in good faith reliance upon the provisions of this Agreement. No Member shall have any responsibility to restore any negative balance in its Capital Account (as defined in Section 7.01) or to contribute to or in respect of the liabilities or obligations of the LLC or return distributions made by the LLC except as required by the Act or other applicable law; provided, however, that Members are responsible for their failure to make required Capital Contributions under Section 7.02. The failure of the LLC to observe any formalities or requirements relating to the exercise of its powers or the management of its business or affairs under this Agreement or the Act shall not be grounds for making its Members or Officers responsible for any liability of the LLC.

2.06 Authority. Unless specifically authorized by the Managing Member, a Member other than the Managing Member shall not be an agent of the LLC or have any right, power or authority to act for or to bind the LLC or to undertake or assume any obligation or responsibility of the LLC or of any other Member.

2.07 No Right to Withdraw. Except as set forth in **Error! Reference source not found.** with respect to Transfers of Units or in accordance with Article 10, no Member shall have any right to resign or withdraw from the LLC without the consent of the Managing Member. No Member shall have any right to receive any distribution or the repayment of its Capital Contribution, except as provided in Article 8 and Article 10.

2.08 Rights to Information. Members shall have the right to receive from the Managing Member upon request a copy of the Certificate and of this Agreement, as amended from time to time, and such other information regarding the LLC as is required by the Act, subject to reasonable conditions and standards established by the Managing Member as permitted by the Act, which may include, without limitation, withholding of, or restrictions on, the use of Confidential Information.

2.09 No Appraisal Rights. No Member shall have any right to have its interest in the LLC appraised and paid out under the circumstances provided in Section 18-210 of the Act, or under any other circumstances.

2.10 Compliance with Securities Laws and Other Laws and Obligations. Each Member hereby represents and warrants to the LLC and acknowledges that (a) it has such knowledge and experience in financial and business matters that it is capable of evaluating the merits and risks of an investment in the LLC and making an informed investment decision with respect thereto, (b) it is able to bear the economic and financial risk of an investment in the LLC for an indefinite period of time and understands that it has no right to withdraw and have its interest repurchased by the LLC, (c) it is acquiring an interest in the LLC for investment only and not with a view to, or for resale in connection with, any distribution to the public or public offering thereof, (d) it understands that the equity interests in the LLC have not been registered under the securities laws of any jurisdiction and cannot be disposed of unless they are subsequently registered and/or qualified under applicable securities laws and the provisions of this Agreement have been complied with, and (e) if it is an entity, the execution, delivery and performance of this Agreement does not require it to obtain any consent or approval that has not been obtained and does not contravene or result in a default under any provision of any existing law or regulation applicable to it, any provision of its charter, by-laws or other governing documents (if applicable) or any agreement or instrument to which it is a party or by which it is bound.

2.11 Admission of New Members. The LLC, with the consent of the Managing Member and subject to the rights of Members contained in this Agreement, is authorized to offer and sell, or cause to be offered and sold, additional Units and to exchange or cause to be exchanged additional Units for securities or other property both in accordance with the provisions hereof and to admit additional persons to the LLC as Members who may participate in the profits, losses, distributions, allocations and Capital Contributions of the LLC upon such terms as are established by the Managing Member, which may include the authorization and issuance of additional Units or the designation and issuance of new classes of units or the establishment of classes or groups of one or more Members having different relative rights, powers and duties, including without limitation, rights and powers that are superior to those of existing Members, or the right to vote as a separate class or group on specified matters, by amendment of this Agreement under Section 11.04. The Managing Member may establish eligibility requirements for admission of a subscriber as a Member and refuse to admit any subscriber that fails to satisfy such eligibility requirements. New Members shall be admitted at the time when all conditions to their admission have been satisfied, as determined by the Managing Member, and their identity and Units (including their Capital Commitment (as defined in Section 7.02), if any), as applicable, have been established by amendment of **Schedule A**.

2.12 Confidentiality. As used herein, "Confidential Information" means all confidential or proprietary information about the LLC, its direct and indirect subsidiaries or any of their respective Affiliates and businesses, including, without limitation, financial statements, reports, and this Agreement, and any confidential or proprietary information about the LLC, its subsidiaries or any of their respective businesses to which a Member is provided access. Each Member agrees to use such Confidential Information solely for purposes reasonably related to such Member's investment in the LLC, and to maintain all Confidential Information in the strictest confidence and not to disclose Confidential Information to any Person other than its fiduciaries, agents or advisors who are subject

to obligations of confidentiality at least as restrictive with respect to disclosure and use as the provisions of this Section 2.12. Each Member also may disclose Confidential Information to the extent necessary in order to comply with any law, order, regulation, ruling or governmental request applicable to such Member. A Member's obligation hereunder shall not apply to any Confidential Information that becomes publicly available through no fault or act of the Member or the disclosure of which is required by a court or governmental authority or otherwise required by law.

ARTICLE 3
MANAGING MEMBER

3.01 Management by Managing Member. The business and affairs of the LLC shall be managed by and under the direction of the Managing Member, who may unilaterally act on behalf of the LLC with or without a meeting. All decisions concerning the business and affairs of the LLC shall be made by the Managing Member, and the affirmative consent (regardless of whether it is written, oral, or by course of conduct) of the Managing Member shall constitute the consent of all of the members of the LLC for purposes of the Act, the Certificate, and this Agreement. Subject to the non-waiveable provision of the Act, the Certificate and this Agreement, the Managing Member shall have authority to do every act consistent with applicable law. Actions by the Managing Member shall bind the LLC regardless of whether such action is for the purpose of apparently carrying on the usual way the business or affairs of the LLC, including the exercise of the authority indicated in this Article 3. No person shall have any duty or obligation to inquire into the authority or power of the Managing Member regarding the Managing Member's actions on behalf of the LLC. The failure of the LLC or Managing Member to observe any formalities or requirements relating to the exercise of its powers or the management of its business or affairs under this Agreement or the LLC Law shall not be grounds for imparting personal liability on the Managing Member for liabilities of the LLC. Except as expressly provided in this Agreement or by the non-waivable provisions of the Act, no Member other than the Managing Member shall have the right to participate in the management of the LLC.

3.02 General.

(a) The Managing Member shall be deemed to be a manager of the LLC and shall have all of the rights, powers and obligations of a "manager" of the LLC as provided in the Act and as otherwise provided by law. The Managing Member may delegate (by meeting, e-mail and/or any other source of communication deemed appropriate by the Managing Member) any or all of such rights, powers and obligations to any Officers (as defined in Section 4.01) of the LLC.

(b) The Managing Member may adopt such procedures as it may deem appropriate to make decisions regarding use or investment of the LLC's capital, authorization of capital calls, budget of the LLC, the election of board seats of all portfolio companies in which the LLC invests, financings, dispositions of the LLC's assets and other LLC business. No regular meetings of the Managing Member shall be required. Action may be taken by the Managing Member by written consent.

3.03 Limitation of Liability of Managing Member. Except as otherwise provided in the Act, the Managing Member of the LLC shall not be obligated personally for any debt, obligation or liability of the LLC or of any other Member, whether arising in contract, tort or otherwise, solely by

reason of being the Managing Member. Except as otherwise provided in the Act, by law or expressly in this Agreement, the Managing Member shall not have any fiduciary or other duty to another Member with respect to the business and affairs of the LLC, and the Managing Member shall not be liable to the LLC or any other Member for acting in good faith reliance upon the provisions of this Agreement. The Managing Member shall not be personally liable to the LLC or to its Members for acting in good faith reliance upon the provisions of this Agreement, or for breach of any fiduciary or other duty that does not involve (a) acts or omissions in bad faith or which involve intentional misconduct or a knowing violation of law; or (b) a transaction from which the Managing Member derived an improper personal benefit. The failure of the LLC to observe any formalities or requirements relating to the exercise of its powers or the management of its business or affairs under this Agreement or the Act shall not be grounds for making the Managing Member responsible for any liability of the LLC.

ARTICLE 4
OFFICERS; PARTNERSHIP REPRESENTATIVE

4.01 Officers. The Managing Member shall have the discretion to appoint and determine the duties of one or more of the following officers of the LLC: a Chief Executive Officer, a President, one or more Vice-Presidents, a Secretary, and a Treasurer (each individually an "Officer" and, collectively the "Officers") and shall have the authority to delegate any or all of its duties as manager to certain of such Officers.

4.02 Qualification. The Officers may, but are not required to, be Members and shall hold office until their death, resignation or removal.

4.03 Reliance by Third Parties. Any person dealing with the LLC, the Officers or any Member may rely upon a certificate signed by the Managing Member as to: (a) the identity of any Officer or Member; (b) any factual matters relevant to the affairs of the LLC; (c) the persons who are authorized to execute and deliver any document on behalf of the LLC; or (d) any action taken or omitted by the LLC, the Officers or any Member.

4.04 Compensation. The Officers shall receive such compensation for their services and benefits as may be approved from time to time by the Managing Member. In addition, the Officers shall be entitled to reimbursement for out-of-pocket expenses incurred in managing and conducting the business and affairs of the LLC.

4.05 Limitation of Liability of Officers. No Officer shall be obligated personally for any debt, obligation or liability of the LLC or of any Member, whether arising in contract, tort or otherwise, solely by reason of being or acting as an Officer of the LLC. No Officer shall be personally liable to the LLC or to its Members for acting in good faith reliance upon the provisions of this Agreement, or for breach of any fiduciary or other duty that does not involve (a) a breach of the duty of loyalty to the LLC or its Members, (b) acts or omissions in bad faith or which involve intentional misconduct or a knowing violation of law; or (c) a transaction from which the Officer derived an improper personal benefit.

4.06 Partnership Representative.

(a) Unless and until another Member is designated as the Partnership Representative (as defined below) by the Managing Member, the Managing Member (acting through Austin Berk) shall be the "partnership representative" (the "Partnership Representative") within the meaning of Section 6223(a) of the Code. The Partnership Representative may:

(i) with respect to each tax year in which the LLC is eligible to do so, cause the LLC to take whatever steps are necessary to make the election under Section 6221(b) of the Code not to be subject to Company-level audit proceedings;

(ii) agree to extend any statute of limitations with respect to the LLC;

(iii) make an election under Code Section 6226 to have the Members take tax adjustments into account on their own tax returns;

(iv) file a request for administrative adjustment (including a request for substituted return treatment) under Section 6227 of the Code;

(v) file a petition for judicial review, or any appeal with respect to any judicial determination;

(vi) take any action to consent to, or to refuse to consent to, a settlement reflected in a decision of a court; or

(vii) enter into any tax settlement agreement affecting the LLC.

(b) In the event that the LLC becomes liable for and pays any taxes, interest or penalties under Code Section 6225, then, at the LLC's election by written notice to each Person who owned a Membership Interest in the LLC during the year to which such liability relates (each such person, a "Reviewed Year Member"), each Reviewed Year Member shall indemnify, defend, and hold harmless the LLC for such Reviewed Year Member's allocable share of the amount of such tax liability, including any interest, penalties, and related expenses associated therewith, as determined by Partnership Representative. If the Partnership Representative, with the approval of the Managing Member, determines to have the Members file amended tax returns pursuant to Code Section 6225(c)(2), all Members shall timely file and include payment of any tax due with such amended returns. The obligations under this Section 4.06(b) shall survive indefinitely any termination of a Member's membership in the LLC.

(c) Subject to Section 4.06(a) and Section 4.06(b) above, all tax elections required or permitted to be made under the Code and any applicable state, local or foreign tax law shall be made in the discretion of the Partnership Representative, and any decision with respect to the treatment of LLC transactions on the LLC's federal, state, local or foreign tax returns shall be made in such manner as may be approved by the Partnership Representative.

(d) The Partnership Representative will promptly give notice to the Managing Member and the other Members of the commencement of any governmental, administrative or judicial proceeding, including any IRS examination or audit, involving the tax treatment of any item of LLC income, gain, loss, deduction or credit, and will further keep the Managing Member fully informed of all material developments in such proceedings.

(e) Each Member agrees that it shall not, except as otherwise required by applicable law or regulatory requirements: (i) treat, on its income tax returns, any item of income, gain loss, deduction or credit relating to its Membership Interest in the LLC in a manner inconsistent with the treatment of such item by the LLC as reflected on the Schedule K-1 or other information statement furnished by the LLC to such Member for use in preparing its income tax returns; or (ii) file any claim for refund relating to any such item based on, or which would result in, such inconsistent treatment. If any Member intends to file a notice of inconsistent treatment under Code Section 6222(c), such Member shall give reasonable notice under the circumstances to the Partnership Representative of such intent and the manner in which the Member's intended treatment of an item is (or may be) inconsistent with treatment of that item by the other Members.

(f) The LLC shall indemnify and reimburse the Partnership Representative for all expenses (including legal and accounting fees) incurred by the Partnership Representative pursuant to this Section 4.06 or otherwise in connection with serving as the Partnership Representative of the LLC, including, without limitation, in connection with any proceeding regarding the tax liability of the Members attributable to their membership in the LLC.

(g) Unless otherwise agreed by the Managing Member, all tax returns of the LLC shall be prepared by the LLC's certified public accountant.

(a) The LLC shall use commercially reasonable efforts to distribute annual tax reporting forms to its Members no later than ninety (90) days following the end of each Fiscal Year.

ARTICLE 5
INDEMNIFICATION

5.01 Indemnification. Except as limited by law and subject to the provisions of this Article 5, the LLC may indemnify each Indemnified Party to the fullest extent permitted to officers, directors, employees and agents of a corporation under the Delaware General Corporation Law against all expenses incurred by the Indemnified Party in connection with any proceeding in which such Indemnified Party is involved as a result of serving in such capacity, except that no indemnification shall be provided for an Indemnified Party regarding any matter as to which it shall be finally determined (a) that said Indemnified Party did not act in good faith and in the reasonable belief that such Indemnified Party's action was in the best interests of the LLC, or (b) with respect to a criminal matter, that said Indemnified Party had reasonable cause to believe that such Indemnified Party's conduct was unlawful. Subject to the foregoing limitations, such indemnification may be provided by the LLC with respect to a proceeding in which it is claimed that an Indemnified Party received an improper personal benefit by reason of its position, regardless of whether the claim arises out of the Indemnified Party's service in such capacity, except for matters as to which it is finally determined that an improper personal benefit was received by the Indemnified Party.

5.02 Advance Payments. Except as limited by law or the provisions of this Article 5, expenses incurred by an Indemnified Party in defending any proceeding, including a proceeding by or in the right of the LLC, may be paid by the LLC to the Indemnified Party in advance of final disposition of the proceeding. The LLC may require that such Indemnified Party execute a written undertaking to repay the amount of any advance if the Indemnified Party is determined pursuant to this Article 5 or adjudicated to be ineligible for indemnification. Any such undertaking by an Indemnified Party shall be an unlimited general obligation of the Indemnified Party, need not be

secured and may be accepted without regard to the financial ability of the Indemnified Party to make repayment. No advance payment of expenses shall be made if it is determined pursuant to Section **Error! Reference source not found.** on the basis of the circumstances known at the time (without further investigation) that the Indemnified Party is ineligible for indemnification.

5.03 Insurance. The LLC shall have power to purchase and maintain insurance on behalf of any Indemnified Party, agent or employee against any liability or cost incurred by such person in any such capacity or arising out of its status as such, whether or not the LLC would have power to indemnify against such liability or cost. The LLC shall purchase director and officer indemnification insurance in amounts and on terms satisfactory to the Managing Member.

5.04 Non-Exclusivity; Indemnification Agreements. The provisions of this Article 5 shall not be construed to limit the power of the LLC to indemnify its Members, Officers, employees or agents to the fullest extent permitted by law or to enter into specific agreements, commitments or arrangements for indemnification permitted by law. The absence of any express provision for indemnification herein shall not limit any right of indemnification existing independently of this Article 5. The right of indemnification hereby provided shall not be exclusive of, and shall not affect, any other rights to which an Indemnified Party may be entitled at law, under other agreements or otherwise. Nothing contained in this Article 5 shall limit any lawful rights to indemnification existing independently of this Article 5.

ARTICLE 6
CONFLICTS OF INTEREST

6.01 Transactions with Interested Persons. Unless entered into in bad faith, no contract or transaction between the LLC and one or more of its Officers or Members, or between the LLC and any other corporation, partnership, association or other organization in which one or more of its Officers or Members have a financial interest or are directors, partners, managers or officers, shall be voidable if such contract or transaction was commercially reasonable and fair to the LLC.

6.02 Outside Businesses. Any Member may engage or have an interest in other business ventures which are similar to or competitive with the business of the LLC. No Member shall be obligated to present an investment opportunity to the LLC even if it is similar to or competitive with the business of the LLC, and such Member shall have a right to take for its own account or recommend to others any such investment opportunity.

ARTICLE 7
CAPITAL ACCOUNTS AND CAPITAL COMMITMENTS

7.01 Capital Accounts.

(a) A separate capital account (a "Capital Account") shall be maintained for each Member in accordance with Section 1.704-1(b)(2)(iv) of the U.S. Treasury Regulations (the "Treasury Regulations"), and this Section 7.01 shall be interpreted and applied in a manner consistent with said Section of the Treasury Regulations. The LLC will maintain Capital Accounts for each Member in accordance with the following provisions:

(i) to each Member's Capital Account there will be credited (A) such

Member's Capital Contribution and, (B) such Member's distributive share of Net Profit and any items in the nature of income or gain which are specially allocated to such Member pursuant to Section 8.05(b), and (C) the amount of any LLC liabilities assumed by such Member or to which any property distributed to such Member is subject; and

(ii) from each Member's Capital Account there will be debited (A) the amount of cash distributed to such Member pursuant to any provision of this Agreement, (B) the Gross Asset Value of any property (other than cash) distributed to such Member pursuant to any provision of this Agreement, (C) such Member's distributive share of Net Loss and any items in the nature of expenses or losses which are specially allocated to such Member pursuant to Section 8.05(b), and (D) the amount of any liabilities of such Member considered, under Section 752 of the Code, to be assumed by the LLC or to which any property contributed by such Member to the LLC is subject;

(iii) In the event any interest is transferred in accordance with the terms of this Agreement, the transferee shall succeed to the Capital Account of the transferor to the extent its relates to the transferred interest;

(iv) In determining the amount of any liability for purposes of subparagraphs (i) and (ii) above, there shall be taken into account Code Section 752(c) and any other applicable provisions of the Code and Treasury Regulations; and

(v) The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Treasury Regulations Sections 1.704-1(b) and 1.704-2 and shall be interpreted and applied in a manner consistent with such Treasury Regulations. In the event that the Managing Member shall determine it is prudent to modify the manner in which the Capital Accounts, or any additions thereto or subtractions therefrom, are computed in order to comply with such Treasury Regulations, the Managing Member may make such modification, provided that it is not likely to have a material effect on the amounts distributable to any Member pursuant to Article 8 hereof upon the dissolution of the LLC.

(b) The LLC may adjust the Capital Accounts of its Members to reflect revaluations of the LLC property whenever the adjustment would be permitted under Treasury Regulations Section 1.704-1(b)(2)(iv)(f). In the event that the Capital Accounts of the Members are so adjusted, (i) the adjustment shall be based on the fair market value of the LLC property, as determined by the Managing Member, on the date of adjustment, (ii) the adjustment shall reflect the manner in which unrealized income, gain, loss, or deduction inherent in such LLC property (that has not been previously reflected in Capital Accounts) would be allocated among the Members if there were a taxable disposition of such property at fair market value on that date, (iii) the Capital Accounts of the Members shall be adjusted in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(g) for allocations of depreciation, depletion, amortization and gain or loss, as computed for book purposes, with respect to such property and (iv) the Members' distributive shares of depreciation, depletion,

amortization and gain or loss, as computed for tax purposes, with respect to such property shall be determined so as to take account of the variation between the adjusted tax basis and book value of such property in the same manner as under Section 704(c) of the Code. In the event that Code Section 704(c) applies to LLC property, the Capital Accounts of the Members shall be adjusted in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(g) for allocations of depreciation, depletion, amortization and gain and loss, as computed for book purposes, with respect to such property. The Capital Accounts shall be maintained for the sole purpose of allocating items of income, gain, loss and deduction among the Members and shall have no effect on the amount of any distributions to any Members in liquidation or otherwise. The amount of all distributions to Members shall be determined pursuant to Article 8.

7.02 Capital Commitments by Members. Except as set forth on **Schedule A** with respect to the initial Capital Contribution to be made by each Member (each a "Capital Commitment"), no Member shall be entitled or required to make any contribution to the capital of the LLC; however, the LLC may borrow from its Members as well as from banks or other lending institutions to finance its working capital or the acquisition of assets upon such terms and conditions as shall be approved by the Managing Member, and any borrowing from Members shall not be considered Capital Contributions or reflected in their Capital Accounts. In the event of additional Capital Contributions, **Schedule A** may be amended by the Managing Member to reflect such additional Capital Contributions. No Member shall be entitled to any interest or compensation with respect to his Capital Contribution or any services rendered on behalf of the LLC except as specifically provided in this Agreement or approved by the Managing Member. No Member shall have any liability for the repayment of the Capital Contribution of any other Member and each Member shall look only to the assets to the LLC for return of his Capital Contribution.

ARTICLE 8
DISTRIBUTIONS AND ALLOCATIONS

8.01 Distribution of LLC Funds.

(a) Distributions. Except as otherwise limited by the Act, all amounts which are determined by the Managing Member to be available for distribution shall be distributed to the Members in proportion to their respective number of Units and Percentage Interest as set forth on **Schedule A**.

(b) Tax Distributions. Subject to determination by the Managing Member in its sole discretion that the LLC has available funds, within ninety (90) days following the end of each calendar year (or such shorter period as is determined at any time by the Managing Member in its sole discretion), the LLC shall distribute to each Member, with respect to each class of Units held by such Member, an amount (a "Tax Distribution") equal to the Member's Tax Liability (as defined below) in respect of such class of Units since the last date on which a Tax Distribution was made. A Member's "Tax Liability" shall give effect to the class of Units then held by the applicable Member and shall be equal to the product of (x) the Tax Rate (as defined below) and (y) the Member's allocable share of the LLC's net taxable income, if any, for the period since the last period for which a Tax Distribution was made (as determined under Code Section 703(a) but including separately stated items described in Code Section 702(a)) in respect of such class of Units; provided, that items of income, gain,

loss and deduction attributable to the sale or exchange of all or substantially all of the assets of the LLC shall be excluded from such calculation. The "Tax Rate" shall mean, for any period, an assumed rate equal to the highest effective combined federal, state and local tax rate that is applicable to any Member, which may be equitably adjusted in the discretion of the Managing Member to account for periods during which the Tax Rate changes. In the event a Member's allocable share of LLC net taxable income in respect of a class of Units for any period is negative, such negative amount shall be carried forward and taken into account for all purposes of this Section 8.01 (including application of this sentence) in determining such Member's distributive share of LLC net taxable income in respect of such class of Units in each subsequent period (whether or not in the same Fiscal Year) until such negative amount is offset in full by positive net taxable income. Any Tax Distributions received by a Member in respect of such Member's Units shall be considered advances of amounts otherwise distributable to such Member pursuant to Section 8.01(a).

(c) Distributions Limited. No Member shall be entitled to any distribution or payment with respect to its interest in the LLC upon the resignation or withdrawal of such Member. Distributions may be limited and repayable as provided in the Act.

(d) Erroneous Distributions. If the LLC has, pursuant to any clear and manifest accounting or similar error, paid any Member an amount in excess of the amount to which it is entitled pursuant to this Article 8, such Member will reimburse the LLC to the extent of such excess, without interest, within thirty (30) days after demand by the LLC. This obligation of a Member to reimburse the LLC for erroneous distributions shall continue after such Member transfers or liquidates any or all of its interest in the LLC.

8.02 Distribution Upon Liquidation Events. Upon any liquidation, dissolution or winding up, voluntary or involuntary, of the LLC, a sale, license, lease or transfer of all or substantially all of the LLC's assets, a consolidation or merger of the LLC with another entity, any transaction pursuant to or as a result of which a single party (or group of affiliated parties) acquires or holds capital stock of the LLC representing a majority of the outstanding voting power of the LLC, or a sale, license, lease or transfer of all or substantially all of the LLC's assets (each such event, a "Liquidation Event"), amounts available upon such Liquidation Event, after payment of, or adequate provision for, the debts and obligations of the LLC, including the expenses of its liquidation and dissolution, the payment of any liabilities to its Officers or Members, if any, other than liabilities to Members for distributions shall be distributed and applied in the following priorities:

(a) First, to fund reserves to the extent deemed appropriate by the Managing Member for contingent, conditional, unmatured or other liabilities of the LLC not otherwise paid or provided for, provided that, upon the expiration of such period of time as the Managing Member shall deem advisable, the balance of such reserves remaining after payment of such liabilities shall be distributed in the manner hereinafter set forth; and

(b) Thereafter, as provided in Section 8.01(a).

8.03 Distribution of Assets in Kind. No Member shall have the right to require any distribution of any assets of the LLC to be made in cash or in kind. If any assets of the LLC are distributed in kind, such assets shall be distributed pursuant to Section 8.01(a) on the basis of their fair market value as determined by the Managing Member. Any Member entitled to any interest in

such assets shall, unless otherwise determined by the Managing Member, receive separate assets of the LLC, and not an interest as tenant-in-common with other Members so entitled in each asset being distributed.

8.04 Withholding. The LLC is authorized to withhold from distributions to a Member, and to pay over to a federal, state or local government, any amounts required to be withheld pursuant to the Code or any provisions of any other federal, state or local law. Any amounts so withheld and paid over will be treated as having been distributed to such Member pursuant to this Article 8 for all purposes of this Agreement, and will be offset against the amounts otherwise distributable to such Member. Consistent with this provision, if the LLC did not withhold any amounts it was required to withhold, the LLC may, at its option, (a) require the Member to which the withholding was credited to reimburse the LLC for such withholding or (b) reduce any subsequent distributions or withdrawals by the amount of such withholding. This obligation of a Member to reimburse the LLC for taxes that were required to be withheld shall continue after such Member transfers or liquidates any or all of its interest in the LLC. Each Member agrees to furnish the LLC with any representations and forms as shall reasonably be requested by the LLC to assist it in determining the extent of, and in fulfilling, any withholding obligations it may have. The Members shall furnish to the Managing Member from time to time all such information as is required by applicable law or otherwise reasonably requested by the Managing Member (including certificates in the form prescribed by the Code and applicable Treasury Regulations or applicable state, local, or foreign law) to permit the Managing Member to ascertain whether and in what amount withholding is required of the Members.

8.05 Allocations.

(a) Allocation of Net Profit and Net Loss. Subject to the other provisions of this Section 8.05, for purposes of adjusting the Capital Accounts of the Members, the Net Profit, Net Loss and, to the extent necessary, individual items of income, gain, loss, credit and deduction, for any Fiscal Year shall be allocated among the Members (on a net basis) in a manner such that the Adjusted Capital Account of each Member, immediately after making such allocation is, as nearly as possible, equal (proportionately) to the distributions that would be made to such Member pursuant to Section 8.02 if the LLC were dissolved, its affairs wound up and its assets sold for cash equal to their Gross Asset Value, all LLC liabilities were satisfied (limited with respect to each nonrecourse liability to the Gross Asset Value of the asset securing such liability), and the net assets of the LLC were distributed in accordance with Section 8.02 to the Members immediately after making such allocation.

(b) Regulatory Allocations. Notwithstanding any other provision in this Agreement to the contrary, the following special allocations will be made in the following order:

(i) Minimum Gain Chargeback. If there is a net decrease in LLC Minimum Gain or Member Minimum Gain during any Fiscal Year, each Member will be specially allocated items of LLC income and gain for such Fiscal Year (and, if necessary, subsequent Fiscal Years) in an amount equal to such Member's share of the net decrease in such LLC Minimum Gain or Member Minimum Gain, determined in accordance with Treasury Regulations Sections 1.704-2(g) and 1.704-2(i)(5). Allocations pursuant to the previous sentence will be made in proportion to the respective amounts required to be allocated to the Members pursuant thereto. The

items to be so allocated will be determined in accordance with Treasury Regulations Section 1.704-2. This provision is intended to comply with the minimum gain chargeback requirement in such Section of the Treasury Regulations and will be interpreted consistently therewith.

(ii) Qualified Income Offset. In the event any Member unexpectedly receives any adjustments, allocations, or distributions described in Treasury Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5) or (6) with respect to such Member's Capital Account, items of LLC income and gain will be specially allocated to each such Member in an amount and manner sufficient to eliminate, to the extent required by the Treasury Regulations, the deficit balance in the Adjusted Capital Account of such Member as quickly as possible; provided that an allocation pursuant to this Section 8.05(b)(ii) will be made only if and to the extent that such Member would have an Adjusted Capital Account deficit after all other allocations provided for in this Section 8.05 have been tentatively made as if this Section 8.05(b)(ii) were not in this Agreement. This Section 8.05(b)(ii) is intended to constitute a "qualified income offset" within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(d) and will be interpreted consistently therewith.

(iii) Certain Additional Adjustments. To the extent that an adjustment to the adjusted tax basis of any LLC asset pursuant to Section 734(b) or Section 743(b) of the Code is required, pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(2) or Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(4), to be taken into account in determining Capital Accounts as the result of a distribution to a Member in complete liquidation of its Interest, the amount of such adjustment to the Capital Accounts shall be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases such basis), and such gain or loss shall be specially allocated to the Members in accordance with their Interests in the LLC in the event that Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(2) applies, or to the Members to whom such distribution was made in the event that Treasury Regulations Section 1.704-1(b)(2)(iv)(m)(4) applies.

(iv) Nonrecourse Deductions. Any Nonrecourse Deductions for any Fiscal Year or other period will be allocated among the Members in accordance with their respective membership interests.

(v) Member Nonrecourse Deductions. The Member Nonrecourse Deductions shall be allocated each year to the Member that bears the economic risk of loss (within the meaning of Treasury Regulations Section 1.752-2) for the Member Nonrecourse Debt to which such Member Nonrecourse Deductions are attributable in accordance with Treasury Regulations Section 1.704-2(i)(1).

(vi) Noncompensatory Options. If, as a result of an exercise of a noncompensatory warrant or option to acquire an interest in the LLC, a Capital Account reallocation is required under Treasury Regulation Section 1.704-1(b)(2)(iv)(*s*)(3), the LLC shall make corrective allocations pursuant to Treasury Regulation Section 1.704-1(b)(4)(x).

(vii) Curative Allocations. The allocations set forth in this Section 8.05(b) are intended to comply with certain requirements of Treasury Regulations under Section 704 of the Code. Notwithstanding any other provision of this Article 8 (other than this Section 8.05(b)), the regulatory allocations in this Section 8.05(b) will be taken into account in allocating other LLC items of income, gain, loss, deduction and expense among the Members so that, to the extent possible, the net amount of such allocations of other LLC items and such regulatory allocations to each Member will be equal to the net amount that would have been allocated to each such Member pursuant to this Article 8 if such regulatory allocations had not been made.

(c) Tax Allocations. Each item of income, gain, loss, deduction or credit for federal, state and local income tax purposes will be allocated among the Members in the same proportions as the corresponding "book" items are allocated pursuant to Sections 8.05(a) and 8.05(b), except as otherwise provided herein. The tax allocations made pursuant to this Section 8.05(c) will be solely for tax purposes and will not affect any Member's Capital Account or share of non-tax allocations or distributions under this Agreement. In the case of contributed or revalued property, items of income, gain, loss, deduction and credit will be allocated solely for federal income tax purposes in a manner consistent with the requirements of Section 704(c) of the Code to take into account the difference between the fair market value of such property and its adjusted tax basis at the time of contribution or revaluation. The LLC may use any allowable method under Section 704(c) of the Code and the Treasury Regulations promulgated thereunder with respect to differences between tax basis and Gross Asset Value of assets, other than any asset contributed or deemed contributed by the Members in connection with the formation of the LLC.

(d) Other Tax Provisions.

(i) For any Fiscal Year or other period during which any part of an interest in the LLC is transferred between the Members or to another person, the portion of the Net Profit, Net Loss and other items of income, gain, loss, deduction and credit that are allocable with respect to such part of an Interest in the LLC shall be apportioned between the transferor and the transferee using any method allowed pursuant to Section 706 of the Code and the applicable Treasury Regulations as chosen by the Managing Member. For purposes of making such allocations, the Managing Member is hereby authorized to select any method, convention or extraordinary item permitted under Regulations Section 1.706-4 as the Managing Member determines necessary or appropriate, which selection shall be set forth in a dated, written statement maintained with the LLC's books and records. The Members hereby agree that any such selection by the Managing Member is made by "agreement of the partners" within the meaning of Regulations Section 1.706-4(f).

(ii) In the event that the Code or any Treasury Regulations require allocations of items of income, gain, loss, deduction or credit different from those set forth in this Section 8.05, the Managing Member is hereby authorized to make new allocations in reliance on the Code and such Treasury Regulations, and no such new allocation shall give rise to any claim or cause of action by any Member.

(iii) For purposes of determining a Member's proportional share of the

LLC's "excess nonrecourse liabilities" within the meaning of Treasury Regulations Section 1.752-3(a)(3), each Member's interest in Net Profit shall be such Member's respective interest in the LLC.

ARTICLE 9
TRANSFERS

9.01 General Restrictions on Transfer. No Member may Transfer all or any part of its Units without the written consent of the Managing Member and first complying with the provisions of this **Error! Reference source not found.**. Subject to compliance with the other provisions of this Article 9, the Managing Member may Transfer its Units without the consent of any other Member.

9.02 Permitted Transfers. Notwithstanding the provisions of Section 9.01 hereof, a Member may only Transfer all or a portion of such Member's Units if (i) the transferee agrees in writing to be bound by the terms of this Agreement, (ii) such Transfer would not cause the LLC to be subject to taxation at the entity level for U.S. federal income tax purposes or cause material adverse tax consequences to the LLC or any Member, and (iii) with regard only to transfers pursuant to subsection (a) below, the transferee executes a proxy in favor of the transferor giving the transferor full right, power and authority to vote and otherwise control the Units being transferred, to any of the following persons (each such person, a "Permitted Transferee"):

(a) with respect to a Member that is a natural person, during the lifetime of such Member, a trust or other Person established for the primary benefit of that Member, or such Member's immediate family, and controlled by such Member; or

(b) with respect to a Member that is a natural person and following the death of such Member, to the beneficiary of a will, intestacy probate proceeding or similar proceeding or process with respect to such Member.

Notwithstanding the foregoing, a Member who is not a Managing Member may Transfer only the economic interests, rights, duties and obligations of the transferor in its capacity as a Member to a Permitted Transferee, and no Permitted Transferee shall obtain as a result of any such assignment any voting or management rights.

9.03 Effect of Transfer.

(a) If the Transferee is admitted as a Member or is already a Member, the Member Transferring its Units shall be relieved of liability with respect to the Transferred Units arising or accruing under this Agreement on or after the effective date of the Transfer, provided that the transferor affirmatively assumes such liability; provided, however, that the transferor shall not be relieved of any liability for prior distributions or any obligations under Section 4.06(b) unless the Transferee affirmatively assumes such liabilities.

(b) Any person who acquires in any manner Units or any part thereof in the LLC, whether or not such person has accepted and assumed in writing the terms and provisions of this Agreement or been admitted as a Member, shall be deemed by the acquisition of such Units to have agreed to be subject to and bound by all of the provisions of this Agreement with respect to such Units, including without limitation, the provisions hereof with respect to

any subsequent Transfer of such Units.

(c) The LLC, its Officers and Members shall be entitled to treat the record owner of Units in the LLC as the absolute owner thereof in all respects, and shall incur no liability for distributions of cash or other property made in good faith to such owner until such time as a written assignment of such Units has been received and accepted by the Managing Member and recorded on the books of the LLC. The Managing Member may refuse to accept and record an assignment until the end of the next successive monthly accounting period of the LLC.

(d) Any Transfer in violation of any provisions of this Agreement shall be null and void and ineffective to Transfer any Units in the LLC and shall not be binding upon or be recognized by the LLC, and any such Transferee shall not be treated as or deemed to be a Member for any purpose. In the event that any Member shall at any time Transfer its Units in violation of any of the provisions of this Agreement, the LLC and the other Members, in addition to all rights and remedies at law and equity, shall have and be entitled to an order restraining or enjoining such transaction, it being expressly acknowledged and agreed that damages at law would be an inadequate remedy for a Transfer in violation of this Agreement.

9.04 Drag Along Right.

(a) In the event a Member or Members holding in the aggregate a majority of the Units issued and outstanding (the "Selling Member") approves a Sale Event, each of the Members, including any of its successors as contemplated herein, hereby agrees, and shall be obligated to:

(i) if such transaction requires Member approval, with respect to all Units that such Member owns or over which such Member otherwise exercises voting power, to vote (in person, by proxy or by action by written consent, as applicable) all Units in favor of, and adopt, such Sale Event and to vote in opposition to any and all other proposals that could delay or impair the ability of the LLC to consummate such Sale Event;

(ii) if such transaction is a Unit Sale, sell the same proportion of Units beneficially held by such Member as is being sold by the Selling Member to the Person to whom the Selling Member proposes to sell its Units, and, on the same terms and conditions as the Selling Member; *provided that*, the price per Unit shall reflect the relative preferences and priorities of the applicable Units;

(iii) to execute and deliver all related documentation and take such other action in support of the Sale Event as shall reasonably be requested by the LLC or the Selling Member in order to carry out the terms and provision of this Section 9.04, including without limitation executing and delivering instruments of conveyance and transfer, and any purchase agreement, merger agreement, indemnity agreement, escrow agreement, consent, waiver, governmental filing, share certificates duly endorsed for transfer (free and clear of impermissible liens, claims and encumbrances) and any similar or related documents;

(iv) not deposit, and to cause their Affiliates to not deposit, except as provided in this Agreement, any Units of the LLC owned by such party or Affiliate in a voting trust or subject any Units to any arrangement or agreement with respect to the voting of such Units, unless specifically requested to do so by the acquirer in connection with the Sale Event;

(v) to refrain from exercising any dissenters' rights or rights of appraisal under applicable law at any time with respect to such Sale Event; and

(vi) if the consideration to be paid in exchange for the Units pursuant to this Section 9.04 includes any securities and due receipt thereof by any Member would require under applicable law (A) the registration or qualification of such securities or of any person as a broker or dealer or agent with respect to such securities or (B) the provision to any Member of any information other than such information as a prudent issuer would generally furnish in an offering made solely to "accredited investors" as defined in Regulation D promulgated under the Securities Act, the LLC may cause to be paid to any such Member in lieu thereof, against surrender of the Units which would have otherwise been sold by such Member, an amount in cash equal to the fair value (as determined in good faith by the LLC) of the securities which such Member would otherwise receive as of the date of the issuance of such securities in exchange for the Units.

(b) By executing this Agreement, each Member hereby (a) grants to the Selling Member an irrevocable proxy coupled with an interest to vote its Units in accordance with its agreements contained in this Section 9.04, whether in a meeting of Members or any other means by which Members are required or requested to vote, consent, approve or otherwise take action or exercise any rights as a holder of Units or in their capacities as Members of the LLC, including a vote or other approval in favor of any Sale Event under this Section 9.04 if a Member vote is required or requested (whether by law or in accordance with this Agreement) to effect such Sale Event, and (b) irrevocably appoints the Selling Member as its agent and attorney-in-fact (the "Agent") (with full power of substitution) to act with respect to its Units in accordance with its agreements contained in this Section 9.04, whether in a meeting of Members or any other means by which Members are required or requested to vote, consent, approve or otherwise take action or exercise any rights as a holder of Units or in their capacities as Members of the LLC, and to execute all consents, agreements, instruments and certificates and take all actions necessary or desirable to effectuate its agreements contained in this Section 9.04, including any Sale Event; provided, however, that such power-of-attorney and proxy shall automatically terminate in the event that the provisions of this Section 9.04 terminate (in accordance with the terms of this Agreement). Each Member hereby grants to the Agent, pursuant to such proxy and power of attorney, full power and authority to do and perform any and every act and thing whatsoever requisite, necessary, or proper to be done in the exercise of any of the rights and powers herein granted, as fully to all intents and purposes as the undersigned might or could do if personally present, with full power of substitution or revocation, hereby ratifying and confirming all that such Agent, or such Agent's substitute or substitutes, shall lawfully do or cause to be done by virtue of such proxy and power of attorney and the rights and powers herein granted.

9.05 Involuntary Transfers.

(a) Anything to the contrary herein notwithstanding, upon the happening of any of the following events to a Member (the "Affected Member"):

(i) a Member becomes bankrupt or insolvent;

(ii) the Membership Interest of a Member is attached or garnished, and such attachment is not discharged or vacated within ninety (90) days from the date it became effective;

(iii) any judgment is obtained in any legal or equitable proceeding against a Member, including any matrimonial action, and the sale or Transfer of all or a portion of the Membership Interest is contemplated or threatened under legal process as a result of such judgment;

(iv) any execution process is issued against a Member or against his or her Membership Interest;

(v) the appointment of a receiver to manage a Member's property; or

(vi) any other form of legal proceedings or processes are threatened or commenced, in which the relief sought is the sale, either voluntarily or involuntarily, of all or a portion of the Membership Interest of a Member;

all Members other than the Affected Member are hereby granted an irrevocable right and option to purchase from the Affected Member or his or her successor in interest, as the case may be, the all Units of the Member whose Membership Interest is encumbered or affected by any such event(s), as though the Member whose Membership Interest is so encumbered or affected had actually given an offer for sale of his or her Membership Interest as of the date immediately preceding any such event(s). This right and option shall be allocated pro rata among the Members other than the Affected Member. If any Member other than the Affected Member does not exercise such right or option, then such option and right shall be granted pro rata to the other Members other than the Affected Member.

(b) As consideration for the purchase of a Membership Interest, the purchasing Member shall give to a selling Member, its note for the full purchase price. The principal of this note shall be payable in twenty (20) equal annual installments. Interest shall be payable annually at the rate of 5% per year.

(c) For the purposes of this Section 9.05, the purchase price for the Membership Interest of any Member shall be determined by reference to the value for the entire LLC as determined by a qualified appraiser to be designated by the Members, at the request of any Member with a then-effective purchase option activated pursuant to this Section 9.05. Any such appraisal shall determine the value of the Affected Member's interest net of any indebtedness of the LLC, including applicable discounts for lack of marketability or minority ownership. The closing of the transaction shall occur within thirty (30) days of the issuance of the appraisal report.

ARTICLE 10

DISSOLUTION, LIQUIDATION AND TERMINATION

10.01 Dissolution. The LLC shall dissolve and its affairs shall be wound up upon the first to occur of the following:

(a) the approval of the Managing Member;

(b) the entry of a decree of judicial dissolution under Section 18-802 of the Act; or

(c) the consolidation or merger of the LLC in which it is not the resulting or surviving entity.

10.02 Notice of Dissolution. The Managing Member shall promptly notify the other Members of the dissolution of the LLC.

10.03 Liquidation. Upon dissolution of the LLC, the Managing Member shall act as its liquidating trustee or the Managing Member may appoint one or more persons (who may or may not be Members) as liquidating trustee. The liquidating trustee shall proceed diligently to liquidate the LLC, to wind up its affairs and to make final distributions as provided in Section 8.032 and in the Act. The costs of dissolution and liquidation shall be an expense of the LLC. Until final distribution, the liquidating trustee may continue to operate the business and properties of the LLC with all of the power and authority of the Officers. As promptly as possible after dissolution and again after final liquidation, the liquidating trustee shall cause an accounting to be made by a firm of independent public accountants of the LLC's assets, liabilities, operations and liquidating distributions to be given to the Members as provided in Section 8.02.

10.04 Certificate of Cancellation. Upon completion of the distribution of LLC assets as provided herein, the LLC shall be terminated, and the Managing Member (or such other person or persons as the Act may require or permit) shall file a Certificate of Cancellation with the Secretary of State of Delaware under the Act, cancel any other filings made pursuant to Sections 1.01, 1.04 and 1.06, and take such other actions as may be necessary to terminate the existence of the LLC.

ARTICLE 11
GENERAL PROVISIONS

11.01 Offset. Whenever the LLC is obligated to make a distribution or payment to any Member, any amounts due and owing from that Member to the LLC may be deducted from said distribution or before payment by the LLC.

11.02 Notices. Except as expressly set forth to the contrary in this Agreement, all notices, requests, or consents required or permitted to be given under this Agreement must be in writing and shall be deemed to have been given (a) three (3) days after the date mailed by registered or certified mail, addressed to the recipient, with return receipt requested, (b) upon delivery to the recipient in person or by courier, (c) upon receipt of a facsimile transmission by the recipient, or (d) upon receipt of electronic mail by the recipient. Such notices, requests and consents shall be given (x) to Members at their numbers or addresses on **Schedule A**, or such other numbers or address as a Member may specify by notice to the other Members, and (y) to the LLC at the address of the

principal office of LLC specified in Section 1.04. Whenever any notice is required to be given by law, the Certificate or this Agreement, a written waiver thereof, signed by the person entitled to notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.

11.03 Entire Agreement. This Agreement constitutes the entire agreement of the Members relating to the LLC and supersedes all prior contracts or agreements with respect to the LLC, whether oral or written.

11.04 Amendment or Modification. Except as otherwise specifically provided herein, this Agreement may be amended or modified from time to time only by a written instrument signed by the Managing Member; *provided* that no amendment which, by its terms, materially and adversely affects the economic rights of the holders of the Units shall be effective without the prior written consent of all holders of Units.

11.05 Binding Effect. Subject to the restrictions on Transfers set forth in this Agreement, this Agreement is binding on and inures to the benefit of the parties and their respective heirs, legal representatives, successors and assigns.

11.06 Governing Law; Severability. This Agreement is governed by and shall be construed in accordance with the law of the State of Delaware, exclusive of its conflict-of-laws principles. In the event of a conflict between the provisions of this Agreement and any provision of the Certificate or the Act, the applicable provision of this Agreement shall control, to the extent permitted by law. If any provision of this Agreement or the application thereof to any person or circumstance is held invalid or unenforceable to any extent, the remainder of this Agreement and the application of that provision shall be enforced to the fullest extent permitted by law.

11.07 Further Assurances. In connection with this Agreement and the transactions contemplated hereby, each Member shall execute and deliver any additional documents and instruments and perform any additional acts that may be necessary or appropriate to effectuate and perform the provisions of this Agreement and those transactions, as requested by the Managing Member.

11.08 Waiver of Certain Rights. Each Member irrevocably waives any right it may have to maintain any action for dissolution of the LLC or for partition of the property of the LLC. The failure of any Member to insist upon strict performance of a covenant hereunder or of any obligation hereunder, irrespective of the length of time for which such failure continues, shall not be a waiver of such Member's right to demand strict compliance herewith in the future. No consent or waiver, express or implied, to or of any breach or default in the performance of any obligation hereunder, shall constitute a consent or waiver to or of any other breach or default in the performance of the same or any other obligation hereunder.

11.09 Interpretation. For the purposes of this Agreement, terms not defined in this Agreement shall be defined as provided in the Act; and all nouns, pronouns and verbs used in this Agreement shall be construed as masculine, feminine, neuter, singular, or plural, whichever shall be applicable. Titles or captions of Articles and Sections contained in this Agreement are inserted as a matter of convenience and for reference, and in no way define, limit, extend or describe the scope of this Agreement or the intent of any provision hereof.

11.10 Counterparts. This Agreement may be executed in any number of counterparts with the same effect as if all parties had signed the same document, and all counterparts shall be construed together and shall constitute the same instrument. Delivery of an executed counterpart of a signature page to this Agreement by facsimile or other electronic means shall be effective as delivery of an original executed counterpart of this Agreement.

11.11 Third Party Beneficiaries. The provisions of this Agreement are not intended to be for the benefit of any creditor or other person to whom any debts or obligations are owed by, or who may have any claim against, the LLC or any of its Members or Officers, except for Members or Officers in their capacities as such. Notwithstanding any contrary provision of this Agreement, no such creditor or person shall obtain any rights under this Agreement or shall, by reason of this Agreement, be permitted to make any claim against the LLC or any Member or Officer.

11.12 Partnership Status. It is the intent of the Members that the LLC shall always be characterized as a "partnership" for federal and state income tax purposes. Neither the LLC nor any Member shall make any election or take any other action inconsistent with such intent. This characterization, solely for such tax purposes, does not create or imply a general partnership among the Members for state law or any other purpose.

11.13 Tax Advice and Cooperation; Tax Positions. Each party hereto acknowledges and agrees that it has not received and is not relying upon tax advice from any other party hereto, and that it has and will continue to consult its own tax advisors. Each party hereto agrees to retain records and information relating to the filing of any tax returns or any audit, litigation or other proceeding related to taxes associated with the matters described herein to the extent required by applicable law, and to cooperate to the extent reasonably requested by any other party in connection therewith, including, upon request, providing records and information that are relevant to such matters and making employees available on a mutually convenient basis to provide such additional information as may reasonably be requested by such other party.

[*Remainder of Page Intentionally Left Blank.*]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date set forth above.

THE LLC:

LAMBERTON MHC PARTNERS, LLC
By: A2Z Community Partners LLC, Managing Member

By: _____
Name: Austin R. Berk
Title: Managing Member

MEMBERS:

A2Z COMMUNITY PARTNERS LLC

By: _____
Name: Austin R. Berk
Title: Managing Member

GAC LAMBERTON LLC

By: _____
Name: _____
Title: _____

JLB GROUP, LLC

By: _____
Name: _____
Title: _____

[Signature Page to Limited Liability Company Agreement of Lamberton MHC Partners, LLC]

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IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date set forth above.

THE LLC:

LAMBERTON MHC PARTNERS, LLC
By: A2Z Community Partners LLC, Managing Member

By: _____
Name: Austin R. Berk
Title: Managing Member

MEMBERS:

A2Z COMMUNITY PARTNERS LLC

By: _____
Name: Austin R. Berk
Title: Managing Member

GAC LAMBERTON LLC

By: DocuSigned by: J. Scott Tarbet
98072CE8DDCA491...
Name: J. Scott Tarbet
Title: Member

JLB GROUP, LLC

By: _____
Name: _____
Title: _____

[Signature Page to Limited Liability Company Agreement of Lamberton MHC Partners, LLC]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date set forth above.

THE LLC:

LAMBERTON MHC PARTNERS, LLC
By: A2Z Community Partners LLC, Managing Member

By: _____
Name: Austin R. Berk
Title: Managing Member

MEMBERS:

A2Z COMMUNITY PARTNERS LLC

By: _____
Name: Austin R. Berk
Title: Managing Member

GAC LAMBERTON LLC

By: _____
Name: _____
Title: _____

JLB GROUP, LLC

By: _____
Name: _____
Title: Member

[Signature Page to Limited Liability Company Agreement of Lamberton MHC Partners, LLC]

SCHEDULE A

Member Name and Address	Initial Capital Contributions	Units	Percentage Interest
A2Z Community Partners, LLC 10221 River Road Suite 59831 Potomac, MD 20859	$90.00	900	90%
GAC Lamberton LLC 575 Pharr Rd. #550634 Atlanta, GA 30355	$30.00	30	3%
JLB Group LLC 10221 River Road Suite 59831 Potomac MD 20859	$70.00	70	7%
Total	$100.00	1,000	100%